

Management Consulting Services Agreement

Contract ID: CNT-2025-0178

Date: March 28, 2025

Between: Meridian Holdings Group ("Client") and Pinnacle Strategy Advisors LLC ("Consultant")

1. Engagement Overview

The Client engages the Consultant to provide management consulting services related to the Client's digital transformation initiative, including organizational restructuring, technology strategy, change management, and operational excellence.

2. Scope of Services

2.1 Phase 1: Assessment and Strategy (Weeks 1-8)

- Current state assessment of organizational structure, processes, and technology
- Stakeholder interviews across all business units (estimated 80-100 interviews)
- Industry benchmarking and competitive analysis
- Digital maturity assessment
- Development of a 3-year digital transformation roadmap
- Executive presentation of findings and recommendations

2.2 Phase 2: Organizational Design (Weeks 9-20)

- Design of target operating model
- Role mapping and skills gap analysis
- Workforce planning and talent strategy
- Change management framework development
- Communication strategy and plan
- Quick-win identification and implementation support

2.3 Phase 3: Implementation Support (Weeks 21-40)

- Program management office (PMO) setup and operation
- Workstream coordination across technology, process, and people tracks
- KPI definition and tracking dashboard
- Monthly steering committee support
- Risk and issue management

- Progress reporting and stakeholder updates

2.4 Ongoing Advisory (Post-Phase 3)

- Monthly advisory sessions with the Client's executive team
- Quarterly progress reviews against the transformation roadmap
- Ad-hoc support for escalated issues

3. Consultant Personnel

3.1 Team Composition

Role	Individuals	Daily Rate
Engagement Partner	1	\$8,000
Senior Manager	2	\$5,000
Manager	3	\$3,500
Senior Consultant	4	\$2,500
Analyst	2	\$1,500

3.2 Key Personnel

The following individuals are designated as Key Personnel and may not be reassigned without the Client's prior written consent:

- [Partner Name] - Engagement Partner
- [Senior Manager Name] - Workstream Lead, Technology
- [Senior Manager Name] - Workstream Lead, Organization

3.3 Subcontracting

The Consultant may engage subcontractors for specialized expertise areas (e.g., industry-specific knowledge, technical assessments). The Consultant shall ensure subcontractors meet the same professional standards and comply with the terms of this agreement.

4. Fees and Payment

4.1 Fee Structure

Services are charged on a time-and-materials basis at the daily rates specified in Section 3.1. The estimated total engagement value is \$3,200,000 based on the proposed team and timeline.

4.2 Fee Cap

Total fees shall not exceed \$3,800,000 without the Client's prior written approval.

4.3 Expenses

Reasonable travel and accommodation expenses will be billed at cost plus a 15% administrative fee. The Consultant will follow the Client's travel policy for booking guidelines. Estimated expenses: \$250,000 over the engagement duration.

4.4 Payment Terms

The Consultant shall submit monthly invoices based on time incurred. Invoices are payable within Net 30 days of receipt.

5. Intellectual Property

5.1 Client Materials

All reports, analyses, presentations, and deliverables specifically created for the Client under this engagement ("Client Materials") shall be owned by the Client upon payment.

5.2 Consultant Methodology

The Consultant retains ownership of all pre-existing methodologies, frameworks, tools, templates, and know-how ("Consultant IP"). The Client receives a non-exclusive, perpetual license to use Consultant IP as embedded in Client Materials.

5.3 Knowledge and Experience

Nothing in this agreement prevents the Consultant from using the general knowledge, skills, and experience gained during this engagement in future work for other clients, provided that Client confidential information is not disclosed.

6. Confidentiality

6.1 Obligations

Both parties agree to maintain the confidentiality of proprietary and sensitive information disclosed during the engagement. The Consultant acknowledges that it will have access to highly sensitive business information including:

- Strategic plans and financial projections
- Organizational restructuring details (including potential workforce reductions)
- Technology architecture and roadmaps
- Customer data and business relationships

- Competitive intelligence

6.2 Duration

Confidentiality obligations shall survive for 2 years following the termination of this agreement.

6.3 Permitted Disclosures

The Consultant may share Client confidential information with:

- Consultant personnel assigned to the engagement
- Subcontractors engaged for the project (subject to equivalent confidentiality obligations)
- Professional advisors under duty of confidentiality

7. Non-Compete

7.1 Restriction

During the engagement and for a period of 5 years following its termination, the Consultant and its Key Personnel shall not provide similar digital transformation consulting services to any entity that directly competes with the Client in any market globally where the Client operates or plans to operate.

7.2 Scope

This restriction applies worldwide and covers all industries in which the Client has current operations or documented strategic interest.

8. Non-Solicitation

During the engagement and for 18 months thereafter, neither party shall directly solicit the employees of the other party who were materially involved in the engagement.

9. Warranties and Representations

9.1 Professional Standards

The Consultant warrants that all services will be performed in a professional and workmanlike manner, consistent with generally accepted industry standards for management consulting services.

9.2 Authority

Each party represents that it has the authority to enter into this agreement and that execution does not violate any other agreement.

9.3 Conflicts of Interest

The Consultant represents that it has no current engagement or relationship that would create a conflict of interest with the services provided under this agreement. The Consultant shall promptly disclose any potential conflicts that arise during the engagement.

10. Indemnification

10.1 Consultant Indemnification

The Consultant shall indemnify, defend, and hold harmless the Client from and against any and all claims, damages, losses, costs, and expenses (including reasonable attorney's fees) arising from the Consultant's breach of this agreement, negligence, or willful misconduct. This indemnification obligation is uncapped and survives termination indefinitely.

10.2 Client Indemnification

The Client shall indemnify the Consultant against third-party claims arising from the Client's implementation of the Consultant's recommendations, provided such recommendations were delivered in accordance with the professional standards set forth in this agreement.

11. Limitation of Liability

Except for indemnification obligations (Section 10), each party's total liability shall not exceed the fees paid under this agreement in the 12 months preceding the claim. Neither party shall be liable for indirect, consequential, or punitive damages.

12. Term and Termination

12.1 Term

This agreement commences on the date of execution and continues for the duration of the engagement (estimated 40 weeks for Phases 1-3), plus any ongoing advisory period mutually agreed.

12.2 Termination for Convenience

Either party may terminate this agreement with 30 days written notice. Upon termination:

- The Client shall pay for all services rendered and expenses incurred through the termination date
- The Consultant shall deliver all work product completed to date
- Transition support shall be provided for 2 weeks at no additional charge

12.3 Termination for Cause

Either party may terminate immediately upon material breach that remains uncured for 15 days after written notice.

13. Insurance

The Consultant maintains the following insurance coverage:

- Professional Liability: \$5,000,000 per claim
- Commercial General Liability: \$2,000,000 per occurrence
- Cyber Liability: \$3,000,000 per claim
- Workers' Compensation: As required by law

14. General Provisions

14.1 Governing Law

This agreement is governed by the laws of the State of New York.

14.2 Independent Contractor

The Consultant is an independent contractor. Nothing in this agreement creates an employment, agency, or partnership relationship.

14.3 Assignment

Neither party may assign this agreement without the prior written consent of the other party.

14.4 Dispute Resolution

Any disputes shall first be escalated to senior management of both parties for resolution within 30 days. If unresolved, disputes shall be submitted to binding arbitration under the rules of the American Arbitration Association.

14.5 Entire Agreement

This agreement constitutes the entire agreement between the parties and supersedes all prior discussions, agreements, and understandings.

IN WITNESS WHEREOF, the parties have executed this agreement as of the date first written above.

For Meridian Holdings Group

For Pinnacle Strategy Advisors LLC